2019 C L C Note 43

[Sindh (Hyderabad Bench)]

Before Khadim Hussain M. Shaikh, J

MOHAMMAD SALEEM---Petitioner

Versus

Mst. RUKHSANA---Respondent

Constitutional Petition No. S-1259 of 2015 and M.A. No. 748 of 2015, decided on 22nd October, 2018.

Family Courts Act (XXXV of 1964)---

----S. 5 & Sched.---Suit for recovery of maintenance allowance for children---Maintenance of children; responsibility of father ---Scope---Petitioner/father contended that the Appellate Court had wrongly enhanced monthly maintenance allowance of his three children from 2000/- to Rs. 3000/- each---Respondent/mother contended that after divorce, petitioner had been dragging her without fulfilling his responsibility of providing maintenance to his children as a father---Validity---Admittedly, three children of the petitioner were dependant who were studying ranging from B.A. to Class four and respondent (mother) had not contracted second marriage for the sake of her children---Petitioner, on the contrary, had been contracting marriage one after the other and had divorced three wives---Respondent by doing labour day and night and borrowing money from her relatives, had been maintaining her children, who all were studying and their monthly expenses would be from Rs. 15,000/- to Rs. 20,000/- per month---Petitioner, beside being a wealthy man, was a Homoeopathic Doctor earning handsome amount but was dragging the respondent in frivolous petition, having put her and his own children in trouble---Petitioner had filed present petition, out of malice, just to deprive his own children the fruits of the decrees in their favour---Constitutional petition was dismissed with costs.

Muhammad Ishtiaque Khan for Petitioner.

Bahzad Ali Umrana for Respondent.

Date of hearing: 22nd October, 2018.

JUDGMENT

KHADIM HUSSAIN M. SHAIKH, J.---The captioned petition is directed against the order dated 27-10-2014, passed by the learned 3rd Additional District Judge, Hyderabad in Family Appeal No.39 of 2014, re: Mst. Rukhsana v. Muhammad Saleem, whereby the judgment and decree dated 10-05-2014, passed by the Family Court, Hyderabad, was modified and the maintenance amount was increased to Rs: 3,000/- per child, per month with 10% increase per annum.

2. The brief facts of the case are that respondent/plaintiff Mst. Rukhsana had filed Family Suit No. 875 of 2012, against the petitioner/defendant Muhammad Saleem in the Court of Family Judge Hyderabad for recovery of dower amount; dowry articles; and, maintenance against the defendant/petitioner, which was

partially decreed, allowing the maintenance to the respondent for the Iddat period of three months; maintenance of minor children namely Muhammad Wali, Hareem Fatima and Tehreem Fatima since filing of the suit till the date of decree; and, future maintenance till their legal entitlement and dismissing the said Family suit with regards to recovery of dower and dowry articles etc. vide Judgment and decree dated 10-05-2018. The respondent Mst. Rukhsana, preferred Family Appeal No.39 of 2014 in the learned Court of District Judge, which was decided by the learned 3rd Additional District Judge, Hyderabad vide order dated 27-10-2014, whereby the Judgment of the Family Court was modified and amount of maintenance was increased. Having felt aggrieved by the said order, passed by the learned Appellate Court, the petitioner/defendant has filed this petition.

3. It is inter alia contended by the learned counsel for the petitioner that the learned Family Court had not properly appreciated the evidence brought on record; that the learned appellate Court has also not considered such aspect of the case; and, the Judgment, Decree and, order passed by the learned Courts below are illegal. He, therefore, prays that the matter may be remanded to the learned Appellate Court for reconsideration of the case and its decision afresh, by setting aside the impugned order, passed by the learned appellate Court.

4. Learned counsel for the respondent has mainly contended that the learned Family Court partly decreed the suit, allowing only maintenance of the Iddat period of respondent and for the children namely Wali Muhammad, Hareem Fatima and Tehreem Fatima and dismissing the suit for rest prayers of the respondent/plaintiff regarding recovery of dower amount and dowry articles etc; that the learned Appellate Court after reappraisal of the evidence brought on record has rightly passed the impugned order increasing the maintenance amount; and, that the petitioner has been dragging the respondent without fulfilling his responsibility of providing maintenance to his minor children as father. He, therefore, prays that the petition being mala fide may be dismissed with costs.

5. I have considered the submissions of learned counsel for the parties, and have gone through the record available.

6. From a perusal of the record, it would be seen that the plaintiff/respondent Mst. Rukhsana had filed Family Suit No. 875 of 2012 for recovery of dower amount, dowry articles and maintenance against the petitioner/defendant Muhammad Saleem; the learned Family Court partially decreed the suit, allowing only maintenance of Rs.2,000/- per month for the respondent/plaintiff Mst. Rukhsana for the Iddat period of three months; and, maintenance of the minor children namely Muhammad Wali, Hareem Fatima and Tehreem Fatima from the date of filing the suit till the date of decree at the rate of Rs. 1,000/- each minor per month and future maintenance at the rate of Rs. 2,000/- each minor per month till their legal entitlement with 10% increase per annum, which has been modified by the learned Appellate Court on re-appraisal of the evidence, enhancing the maintenance to Rs. 3,000/- per month per child with 10% increase per annum as against Rs.21,000/- per month with increase of Rs.30,000/= annually claimed by the respondent/ plaintiff. On a query, the petitioner has stated that his son namely Muhammad Wali, is studying in B.A Part-I. his daughter namely Hareem Fatima,

aged of 14 years is studying in class 8th and his another daughter namely Tehreem Fatima, aged of 10 years is studying in class 4th, who are dependents. The respondent Mst. Rukhsana, who is present in person, has stated that she for the sake of her children, has not contracted second marriage and whereas the petitioner has been contracting marriages one after the other and after sometime of the marriages he divorced his three wives till date; and, that she by doing day and night labour and borrowing money from her relatives has been maintaining her children, who all are now studying in various schools and their monthly expenses would be from Rs.15,000/= to Rs.20,000/= per month, but the petitioner, who besides being a wealthy man is a Homeopathic Doctor, earning handsome amount has been dragging her in frivolous petition, having put her and her children in trouble, increasing their miseries since last a decade. The contentions of the respondent Mst. Rukhsana carry weight. Under these circumstances, I am of the considered view that the petitioner has filed this petition out of malice just to deprive his own children of their right of maintenance and fruits of the decrees in their favour and to delay the payment of maintenance to his children, who having been neglected since last more than 09 years by the petitioner, throwing them at the mercy of other people, would definitely have suffered immense hardships and worries. And, in view of such contumacious conduct of the petitioner this petition is liable to be dismissed with costs. These are the reasons of short order announced by me on 22-10-2018 whereby this petition was dismissed with costs of Rs.20,000/- (Rupees Twenty Thousand). The said amount of costs be paid by the petitioner to the respondent by depositing same with the Additional Registrar of this Court within a period of sixty (60) days from this detailed order, failing which law will take its course for recovery of the costs.

MQ/M-39/Sindh Petition dismissed.

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